

then filed his First Amended Complaint on March 13, 2025, asserting only a single count for violation of the Magnuson-Moss Warranty Act.

However, there is no First Amended Complaint on file.

On March 13, 2025, Plaintiff filed a motion for leave to file First Amended Complaint. (See ROA 22). Plaintiff's counsel included a declaration, wherein he attached a copy of "[t]he redline version of the Proposed First Amended Complaint." (Decl. of Neal F. Morrow, ¶ 8, Ex. 1). Exhibit 1 is a redlined version of the proposed FAC containing proposed deletions and the proposed additions. No clean copy was attached.

On 10/29/25, this court granted the motion, and held as follows: "Plaintiff is ordered to file and serve a clean copy of the First Amended Complaint within 10 days." (See 10/29/25 Order [ROA 54]). The court stated again, in the Order: "For these reasons, the court grant's the motion and orders Plaintiff to file and serve a 'clean' copy of the First Amended Complaint." (*Id.*).

On December 2, 2025, the court held a case management conference with both parties in attendance. The court continued the CMC to 4/28/26, but also stated the following: "Court notes First Amended Complaint has not been filed in this matter." (See 12/2/25 Order [ROA 71]). Notably, this was the same day that Defendant filed the instant motion. Accordingly, the parties were alerted to the fact that no FAC had been on file as of 12/2/25.

To date, no FAC has been filed. Nor has a response to the FAC been filed.

As previously stated, a summary judgment motion "is directed to the issues framed by the pleadings". (*Canales, supra*, 23 Cal.App.5th at 1268). Defendant's motion for summary judgment is directed to a non-existent cause of action under the MMWA in the "FAC" that was never filed.

Accordingly, the motion is denied, but without prejudice as to refile in the event Plaintiff files a copy of his First Amended Complaint.

Defendant to give notice.

10	Dinh vs. The M General Construction Company	TENTATIVE RULING: <u>Motion 1. Motion to Be Relieved as Counsel of Record</u> Counsel Robert A. Von Esch moves to be relieved as counsel of record for Defendant Miguel Mendez (“Client”). For the following reasons, the motion is CONTINUED to August 19, 2026, at 9:00 a.m. in this Department. On 04/29/2026, this court continued the motion for Moving Counsel to file and serve, among other things, proof of service establishing service by non-electronic means of <u>all</u> moving papers on Client. The court record shows no such proof of service. The proof of service shows moving counsel served only the amended declaration on the client by mail at the client’s last known address. The remainder of the motion papers were served by electronic means. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve proof of service establishing service by non-electronic means of all moving papers on Client. (Code Civ. Proc., § 1010.6(c)(3); Rule 2.251(b)(1)(B)). Client Miguel Mendez may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client. <u>Motion 2. Motion to Be Relieved as Counsel of Record</u> Counsel Robert A. Von Esch moves to be relieved as counsel of record for Defendant The M General Construction (“Client”). For the following reasons, the motion is CONTINUED to August 19, 2026, at 9:00 a.m. in this Department. On 04/29/2026, this court continued the motion for Moving Counsel to file and serve, among other things, proof of service establishing service by non-electronic means of all moving papers on Client, and an amended declaration showing reasonable efforts to locate the corporate client’s current mailing information, including but not limited to investigating the corporate registration of Client. The court record shows no such proof of service. The proof of service shows moving counsel served only the amended declaration on the
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		client by mail at the client's last known address. The remainder of the motion papers were served by electronic means. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve proof of service establishing service by non-electronic means of all moving papers on Client (Code Civ. Proc., § 1010.6(c)(3); Rule 2.251(b)(1)(B)); and an amended counsel declaration showing reasonable efforts to locate the corporate client's current mailing address information. Client The M General Construction may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client.
11	Haus of Design HOD, LLC vs. TLB, LLC	TENTATIVE RULING: For the reasons set forth below, the application for writ of possession by Plaintiff Haus of Design HOD, LLC is DENIED without prejudice. Plaintiff seeks a writ of possession from Defendant TLB, LLC of furniture, decorative items, lighting, rugs, artwork, display equipment, and related accessories/personal property under two Staging Services Agreements between the parties. The proofs of service on the application for writ of possession, however, show that Plaintiff served the moving papers for the application for writ of possession on Defendant by electronic mail to Ashok Desai at alan@desaicompany.com and admin@desaicompany.com. (ROA # 22). Code of Civil Procedure § 512.030, however, provides: (a) Prior to the hearing required by subdivision (a) of Section 512.020, the defendant shall be served with all of the following: (1) A copy of the summons and complaint. (2) A Notice of Application and Hearing. (3) A copy of the application and any affidavit in support thereof. (b) If the defendant has not appeared in the action, and a writ, notice, order, or other paper is required to be personally served on the defendant under this title, service shall be made in the